

		Manuel both filed creditor claims. Manuel filed petition against Francille in her capacity as trustee of Carolyn's separate property trust. Francille filed her own petition for appointment as executor. After David died, Audrey filed petition seeking her own letters of administration. Francille prevailed and appointed executor. Pending.
21PR8425	08/24/21	David's spousal property petition. Francille, Rodd and David Jr. objected. After David died, Audrey substituted in as David's executor. Pending.
21PR8452	11/12/21	Audrey's petition to probate David's estate, and for letters testamentary. The petition was approved, and Audrey was appointed executor. Pending.
21DV45739	12/15/21	Manuel's petition for protection (DVRO) against Francille's husband Rodd. Petition denied.
22CV46053	05/31/22	Francille and David Jr's complaint for partition of Burson residence, and rent, against Audrey in her capacity as trustee of David's trust. Pending.

Before the Court is a motion to quash Manuel's business record subpoenas seeking all records, communications, signature cards, beneficiary designations, and statements for accounts belonging to Carolyn "and/or" David Jr. "and/or" Francille, from (1) Transamerica Corporation, (2) Wells Fargo Bank, (3) Wells Fargo Advisors Financial Network, (4) Pacific Cascade Federal Credit Union, (5) Bank of Stockton, (6) Comenity Capital Bank, and (7) Charles Schwab & Co. The singular basis stated for the motion to quash is that the records sought invade the privacy rights belonging to David Jr. and Francille.

The subject subpoenas were issued by Manuel in 21PR8424. The subpoenas were presumably for the purpose of discovering evidence in relation to Manuel's First Amended Petition to enforce Carolyn's alleged oral promise to gift to Manuel APNs 048-025-031, 048-025-038, and 048-025-040. As alleged, after serving two tours of duty in Iraq, Manuel returned stateside to serve in the Air Force Reserves and work as a pharmacist in Texas. Because Carolyn and David Sr. were unable to effectively work the cattle ranch, they allegedly made him an offer: *leave your life in Texas and come live/work on the Ranch, contributing labor and finances as needed, and we will leave the Ranch to you.* Manuel accepted the offer in 2008, moving to the Ranch. Unbeknownst to Manuel, on 08/02/16 his mother Carolyn executed various deeds moving the Ranch into her separate property revocable trust, and directed those assets elsewhere. Manuel contends that Carolyn (or rather her estate) is liable under §850 and principals of promissory estoppel to make good on that promise. Manuel's creditor